

Vijayendra Deogan vs Jai Prakash Associate on 9 January, 2024

Cause Title/Judgement-Entry

STATE CONSUMER DISPUTES REDRESSAL

Reserved

State Consumer Disputes Redressal Commission

U.P. Lucknow.

Complaint Case No.26 of 2013

Vijayendra Deogan, R/o G-53, Ist Floor,

Saket, New Delhi.

...Complainant.

Versus

1- Jai Prakash Associates Ltd., Registered

Office, Jaypee Greens, Sector 128, Noida-

201304, District, G.B. Nagar through its

Managing Director/Chairman.

2- Manager (Commercial), Registered Office,

Jaypee Greens, Sector 128, Noida-

201304, District, G.B. Nagar.

...Opp. parties.

Present:--

1- Hon'ble Sri Rajendra Singh, Presiding Member.

2- Hon'ble Sri Vikas Saxena, Member.

Sri Alok Sinha, Advocate for complainant.

Sri Pratul Pratap Singh, Advocate for opposite parties.

Date: 12.2.2024

JUDGMENT

Per Sri Rajendra Singh, Member- This complaint has been filed by the complainants against the opposite parties.

The brief facts of the complaint case are that, that the opposite party-1 is a company incorporated under the Indian Companies Act, 1956 and is developing a group housing project by the name of Jai Prakash Associated Ltd in township known as "Jaypee Greens". The opposite parties are promoters, builders and contractors and also a limited company which is engaged in the construction activities. The opposite parties in the year 2008 published an advertisement and had started the construction of the apartment and invited the applications for allotment of the apartments/flats. As per the said advertisement, it was assured by the opposite parties that the possession of the flat would be completed within a period of 36 months.

Being influenced and motivated by the high-profile publicity of the opposite parties, the complainant's father Mr. Vijay Kumar Duegan and Mrs. Shashi Deogan met with the opposite party-1 and applied for the apartment/flat in the said scheme of the opposite parties and the same one unit no P5-806 has been allotted to the complainant on 01.07.2008 and the complainant paid

650,000/- with the cheque No.13728 dated 01.07.2008 and paid 560,950/- with a cheque no.014355 dated 02.09.2008 and paid 561,600/- vide cheque no.015072 dated 03.11.2008 and also paid 561,600/- vide cheque no 015292 dated 26.11.2008 , the total amount paid 23,34,150/- @ 4800/- per square feet and the total area is 1170 ft². Thereafter the complainant's father Mr. Vijay Kr. Deogan jointly with Mrs. Shashi Deogan transferred his unit to their son Mr. Vijyendra Kumar Deogan on 13.04.2012 and also the opposite parties issued an amended Provisional Allotment Letter on the same day in the name of the complainant while the opposite parties has credited total deposited amount to the account of unit no.K12-1203. The complainant get back to check the status of above said unit, the complainant came to know that the unit is not expected to be completed in near future because of some soil problem and the opposite parties could not deliver the unit in time. After three years, the complainant was offered to either to change the said unit or to take the money back because of some soil problem and it is not possible to deliver the unit, the complainant became upset but however the complainant was convinced it to transfer to unit number K12-1203 having total area of 1885 square ft.

The complainant visited the construction site where it was revealed that there was hardly any construction activities started on the spot on which the protest was lodged with the opposite parties who assured that the possession shall be delivered in the month of December, 2012 and the request for the same was submitted on 09.03.2011. The complainant very patiently waited for more than one year after December, 2012 as per the commitment made by the opposite parties but when the deadline came, the complainant again and again approached the opposite parties for taking the possession of the flat but the opposite parties again said for more time and assured that the possession shall be handed over very soon. On learning about this, the complainant felt cheated and underwent a lot of mental agony and pain and he again visited the construction site and found no activity there. Having no other option the complainant shifted to a rental accommodation along with his family and bear the burden of 35,000/- per month along with the maintenance charges. The complainant requested for handing over the possession of the said flat but the opposite parties on the pretext that the construction activities are on the peak and said that the delivery shall be given soon. The complainant visited the site after depositing the last instalment and found that the construction activities are still at halt and the person available on the site told that the construction shall be completed by 2018.

The opposite parties issued a letter dated 02.02.2013 to deposit of the amount of 4,279,678/- otherwise the booking would be cancelled. The opposite parties did not supply the brochure, site map, term and conditions and also revised payment plan till date. As per allotment letter, the amount/ instalment was linked with development of the project. The opposite parties without complying with their obligations of making step wise progress in the project, demanded the amount in the most unjust and unfair manner. Complainant had to undergo a lot of mental agony and stress by the attitude of the opposite parties, since the opposite parties failed to abide with their promise to provide the possession of the apartment till December, 2012 which caused to the complainant huge financial loss. The opposite parties are also accountable for unfair trade practice since they have enjoyed and utilized the hard earned money of the complainant alongwith several thousands of allottees without providing the possession of the apartments/flats. Therefore it is most respectfully prayed that this Hon'ble Commission may graciously be pleased;

To direct the opposite parties to provide the physical possession of fully furnished flat No.K-12 1203 in Kalypso Court having an area of 1885 square ft.

To direct the opposite parties to pay interest at a rate of 24% on the amount deposited by the complainant with the effective from the respective dates of deposit till the date of possession.

To direct the opposite parties to pay a sum of 5 lakhs as damages and compensation for committing deficiency in services.

To direct the opposite parties to pay rent at a rate of 35,000.00 per month.

To direct the opposite parties to pay difference in the cost of escalation which shall be incurred at the time of execution of the registered sale deed.

To direct the opposite parties to revised payment schedule and also waive interest. To direct the parties not to cancel the allotment of flat no.K-12 1203 in Kalypso Court.

To allow the complainant and director will parties to pay a sum of Rs.50,000.00 towards cost of the case.

Any other order which this Hon'ble State Commission may deem fit and proper in the circumstances of the case may also be passed.

The opposite party filed its objection and reply of the complaint case in which he has stated that all allegations and claims contained or raised in this complaint are denied. The instant complaint does not put forth the actual and correct facts which are as follows. It is submitted that on the 01.07.2011, Mr. V. K. Deoguen and Mrs. Shashi Deogan had applied for the provisional allotment of an apartment in the Pavilion Court Project/Towers at Jaypee Greens, Noida and having accepted the said application, the respondents made the provisional allotment of the apartment/unit bearing no P5-806 in their favour with a Provisional Allotment Letter dated 21.07.2008. The payment for the said provisional allotment was to be made under the Construction Linked Plan as opted by the said allottees. Subsequently, the said allottees shifted from unit bearing P5-806 two KLP12-1203 and a Provisional Allotment Letter in respect of the unit bearing KLP12-1203 in Kalypso Court project/towers at Jaypee Greens, Noida to this effect was issued to the said allottees on 24.06.2011.

Thereafter at the request of the said allottees, the said provisional allotment of the unit bearing KLP12-1203 was transferred to the son i.e. the complainant herein as the Sole allottee and a confirmation of the said transfer was given to the said allottee as also to the complainant herein vide letter dated 13.04.2012. In the said letter, it was clearly mentioned that all other terms and conditions governing the said provisional allotment shall continue to remain as contained in the provisional allotment letter dated 24.06.2011. The complainant herein, however, did not adhere to the payment plan and despite repeated reminders, did not come forward to make the payment of the dues of the respondents and consequently, left with no option, in conformity with the terms and conditions agreed between the parties, the notice for cancellation of the provisional allotment of the

apartment was given to the complainant by the respondent vide their letter dated 02.02.2013, where it was informed to the complainant that a sum of 4,279,678/- is due and payable by him to the respondents as on 27.01.2013 and in case the said amount is not paid by the complainant within 30 days of the said letter, the provisional allotment of the aforesaid apartment in his favour shall stand cancelled.

The complainant did not clear the dues despite having received the said letter and as such provisional allotment of the apartment in favour of the complainant is liable to be cancelled without any further notice. At present the sum of 6,255,593/- is due and payable against the said apartment by the complainant and the said amount has not been paid by the complainant despite reminders and rather than honouring his obligation, the complainant has filed the present complaint with the malafide intention and to harass the respondents as also to deprive the respondents of the legitimate dues. It is clear that there is no deficiency in service by the respondents and the complainant has only raised a commercial dispute wholly and solely due to the fact that he has been in breach of the agreement with the respondents and as such, this Hon'ble Commission may be pleased to accept the contents of the respondents. The present complaint is false frivolous and vexatious and therefore liable to be dismissed. The instant complaint raises certain intricate questions of fact and law and the same can be determined only after leading detailed technical evidence and cross examination of the parties. The instant complaint, with all respect, cannot be tried and as adjudicated by this Hon'ble Commission and the same has to be referred to the civil court for its proper adjudication.

It is incorrect and vehemently denied that any assurance was given to the complainant by the respondents that the possession of the apartment shall be given within a period of 36 months as alleged or otherwise. No such assurance was given and the complainant was bound to honour the terms of provisional allotment and to pay the due amount in time. The allotment was made in favour of the original allottees by the respondents vide Provisional Allotment Letter dated 01.07.2008. The payment of 23,34,150/- is not in dispute. It is incorrect and vehemently denied that no construction activities have started on the site. It is denied that any protest was lodged by the complainant with the respondents as alleged or otherwise. The possession is to be delivered in accordance with the terms and conditions of the provisional allotment and as the complainant failed to pay the dues and payable amount and at present, a sum of 6,255,593/- is still outstanding, due and payable unless and until the complainant, clears due amount, he is not entitled the possession of the apartment and the provisional allotment is liable to be cancelled.

It is specifically denied that any agony or pain has been caused to the complainant by any act of the respondents. It is also denied that the respondents have cheated the complainant. It is incorrect to say that the complainant has been regularly depositing the instalments as alleged or otherwise. On the contrary, a substantial amount is due, outstanding and payable by the complainant to the respondents. It is submitted that against the total consideration of 9,264,775/- admittedly the complainant paid only a sum of 2,334,150/-. It is denied that the complainant is entitled to any relief prayed. It is submitted that the complainant is not entitled to any relief and the present complaint is liable to be dismissed.

We have heard the learned counsel for the complainant Mr. Alok Sinha and learned counsel for the opposite party Mr. Pratul Pratap Singh. We have perused the pleadings, evidences and documents on record.

First of all we would like to say that in this case the counsel of the opposite party has stated that there is some order passed by the Hon'ble Supreme Court and Hon'ble NCDRC. He was asked by this Court to file the copy of this order but he did not file any such order till date and both the parties argued this case in length.

The opposite party has immensely denied that no assurance was given to the complainant for giving the apartment within a period of 36 months. The opposite party in para-5 of the parawise reply, has stated:-

"It is incorrect and vehemently denied that any assurance was given to the complainant by the respondents that the possession of the apartment shall be given within a period of 36 months as alleged or otherwise. No such assurance was given and the complainant was bound to honour the terms of provisional allotment and to pay the due amount in time."

We have seen the provisional allotment letter dated July 21, 2008, which is printed on the pad of Jaiprakash Associate Ltd. and on the second page, it has been mentioned:-

"subject to the standard terms and conditions shall, the possession of the said apartment is expected to be delivered to you within a period of 36 (Thirty Six) months here of."

So it is clear that the opposite party has promised and gave assurance through their provisional allotment letter that the possession of the apartment shall be given in 36 months. Whatever has been reiterated in the statement proves wrong and false. It is clearly mentioned in the provisional allotment letter and if the case would be otherwise, say if such assurance was not given in the provisional allotment letter or in any other letter even then, the reasonable period for giving of the possession has been fixed three years by the Hon'ble Supreme Court in the following judgement.

Hon'ble Supreme Court in civil appeal number(s) 3533-3534 of 2017, M/S Fortune infrastructure (NOW known as M/s Hicon Infrastructure) & Anr. Vs. Trevor D'Lima & Ors., Judgment 12.03.2018 has held:

"Moreover, a person cannot be made to wait indefinitely for the possession of the flats allotted to them and they are entitled to seek the refund of the amount paid by them, along with compensation. Although we are aware of the fact that when there was no delivery period stipulated in the agreement, a reasonable time has to be taken into consideration. In the facts and circumstances of this case, a time period of 3 years would have been reasonable for completion of the contract i.e., the possession was required to be given by last quarter of 2014. Further there is no dispute as to the

fact that until now there is no redevelopment of the property. Hence, in view of the above discussion, which draw us to an irresistible conclusion that there is deficiency of service on the part of the appellants and accordingly the issue is answered. When once this Court comes to the conclusion that, there is deficiency of services, then the question is what compensation the respondents/complainants is entitled to?"

So it is clear that the possession of the flat was to be handed over within three years. The provisional allotment letter is of July 21, 2008 thereby the possession of the apartment should have been given by July 20, 2011. It is clear that the opposite party failed to deliver the possession of the apartment by the said cut of date. This is the first provisional allotment letter issued by the opposite party. Another provisional allotment letter has been issued by the opposite party on June 24, 2011. The allotment has been transferred by the original allottees to their son. So the date for giving possession of the apartment shall be reckoned from the first provisional allotment letter and not by the latter. So we have come to the conclusion that the period be counted from July 21, 2008.

We have seen the payment plan in which the basic price has a mention as 5,616,000/- and other charges are Rs.4,66,000.00 and the total cost of the apartment has been shown as 6,082,000/-. The payment plan is based on construction and different amount has been mentioned regarding payment of the instalment at different level of laying the floor roof slab. The opposite party did not say a word in his written statement as to how many floors have been completed. There is nothing about offer of possession. It is very important to get the different NOC's like pollution control Department, civil aviation department, fire department, regarding lifts but no such copy of any NOC has been filed. Further in the apartment of the concerned tower has been completed, completion certificate is necessary and before giving possession to the allottee, occupation certificate is necessary. Regarding completion certificate and occupancy certificate, the following article is worth reading along with the judgement of Hon'ble Supreme Court.

COMPLETION / OCCUPANCY CERTIFICATE When buying a home, it is vital to obtain documents, such as the Occupancy Certificate (OC) and Completion Certificate (CC). These are essential documents that allow you to mortgage or sell your home. Hence, homebuyers are advised to take possession of their flat or property only after these documents have been issued.

According to Vikas Bhasin, CMD, Saya Group, "Completion Certificate and Occupancy Certificate are some of the most important documents for a home buyer. Civic authorities can evict the occupants in case of non-availability of the necessary approvals. Before investing in a property, people must be doubly assured that all the certificates and approvals are in place."

Let us dive a little deeper into the details of these documents and their importance before you make a move to buy your dream home.

Owning a home is the culmination of years of savings, research, and paperwork. After patiently waiting for the construction to be complete, you finally register the property and take possession of your flat. But what if your dream home is declared unauthorised, and you are evicted by the authorities? This is not as far-fetched as it sounds. This nightmare could turn into reality without a

crucial link in the property sale process - the Occupancy Certificate (OC).

The majority of apartments in different Indian cities have been occupied by owners without any occupancy certificate. This oversight can turn into a costly mistake, jeopardising the legal status of your dream home. The importance of the occupancy certificate cannot be overstated as it seals the legal status of your property and protects your ownership rights.

Decoding legal documents To understand the importance of an occupancy certificate and other legal documents, let's decode the legal jargon and understand their meaning in simple terms. Here's a ready reckoner of the most important legal documents related to your property:

Occupancy Certificate An OC certifies that the construction of the building has complied with the approved plans. It is issued by local municipal authorities or the building proposal department once the building has been completed and is ready to be occupied. Simply put, without an OC, your building has not been awarded a 'pass certificate'.

Completion Certificate A Completion Certificate (CC) is issued only after the construction meets other building standards like distance from the road, the height of the building, and rainwater harvesting system. A CC alone cannot legalise occupation; the OC is a must.

Commencement Certificate If you are buying an under construction property, make sure you check the Commencement Certificate before signing the agreement. Many builders do not wait for a Commencement Certificate. This is illegal and can create serious problems in obtaining an OC at a subsequent stage.

Why is it unsafe to buy a flat without OC?

In the absence of a valid OC, the local municipal body can initiate serious action against flat owners. In 2014, residents of a well-known building complex in Mumbai's upscale Worli area were hit with a bolt from the blue after their complex was declared unauthorised. At the time of possession, buyers overlooked the issuance of an OC from the builder. It was only after that they were forced to evacuate their flats that the writing on the wall became clear to them.

This is just one instance, and if buyers are not careful about getting the OC, they may face the following repercussions:

- In the absence of a valid OC, your building can be demolished as it can be classified as an unauthorised structure.
- The OC is crucial while applying for a home loan or loan to purchase a resale flat. If you wish to sell or hypothecate the property after a lapse of time, you will not be able

to do so without a valid OC.

- The water connection, sanitary connection or electricity supply can be disconnected in the absence of an OC.

How to obtain an OC The OC is obtained from local municipal bodies by submitting an OC application form along with the following documents:

- Commencement Certificate
 - Completion Certificate
 - Built and Section plan
 - NOC for fire and pollution
 - Area calculation sheet of floor signed by an authorised architect
 - Photographs of the completed building
 - Tax assessment with tax paid receipt
 - Photographs of rain harvesting and solar panels
 - Copy of the sanctioned plan
- After submitting the form, authorities inspect the complex and confirm if it has conformed to the approved plan before issuing an OC. Legally and ideally, a builder should submit an application with the municipal commissioner for the OC within 30 days of completion of the property.

How you can apply for an OC As a flat owner, you can also apply for an OC by approaching the local corporation or municipality, and if all approvals are in place, an OC is issued within 30 days of application. You will have to submit the same documents as the builder to procure an OC.

Know your rights If the builder refuses to provide an OC, you should consider exercising your legal rights. You can issue a notice against the builder asking him to apply and hand over the copy of the OC within a month. You can also approach consumer forums and file a writ petition demanding the OC.

Some canny builders simply present the receipt of the OC and dupe gullible customers. But you shouldn't accept anything less than the actual OC as the receipt may be dated.

Landmark legislations like the Real Estate Regulatory Act (RERA) have been passed to regulate the sector, promote transparency and protect consumer rights. However, consumers must be vigilant and understand their rights and responsibilities towards owning a property. Documents like OC are essential and ensure the security of your investment.

Going forward, real estate experts believe that the OC should be made mandatory for the registration of flats and essential services. Until then, buyers must ensure builders get all the necessary approvals before handing over a property.

A Completion Certificate (CC) is an important legal document that certifies that a building is constructed according to the laid down norms and master plan of the city. This document has all the information related to the project, such as the building

materials used, building height, and building plan, among other things like provision for green belt.

In a nutshell, this document certifies that the building adheres to all the prevailing rules and has not violated any norms. In fact, this document is to be shown compulsorily to the authorities to obtain electricity and water connection.

Builders are allowed to obtain a provisional Completion Certificate when there are minor works left in the project. Authorities then provide a provisional certificate valid for six months. After the expiry of the six months, the developer is bound to get a final CC.

Who issues a Completion Certificate?

Local authorities issue the Completion Certificate after a thorough inspection of the premises. If the developer violates no rules, authority issues a Completion Certificate.

Why is Completion Certificate important?

Buyers must be aware of the fact that if they are buying or moving into a property that does not have a Completion Certificate, they might be making a risky investment choice. The civic authorities hold the power to slap heavy penalties on the developer, leading to stalling or cancellation of the registered layout of the project. In case the building is already occupied, residents may also have to face eviction in extreme cases.

Difference between Occupancy Certificate and Completion Certificate Occupancy Certificate examines and certifies a property for adherence to bye-laws, civic amenities, electricity, sanitation and other clearances. On the other hand, a Completion Certificate is a document that certifies that a property is fit for possession by the buyers.

Clarifying the difference, Deepak Kapoor, Director, Gulshan Homz, says, "Completion Certificate is just a reaffirmation that the building has been constructed as per the building byelaws and the layout plan has been approved by various concerned authorities. Occupation Certificate signals that there is no violation of building construction norms, and thus, the structure is safe for occupants.

Generally, these documents are not required at the time of registry, and hence, buyers tend to overlook or ignore these. But for their own benefit and peace of mind, it is warranted that buyers of both ready-to-move-in as well as under-construction properties check these documents before taking possession. This would help avoid any unnecessary dispute or confrontation in the future."

Hon'ble Supreme Court on occupancy certificate by the builders.

Supreme Court: The bench of Dr. DY Chandrachud* and AS Bopanna, JJ has held that failure on the part of the builder to provide occupancy certificate is a continuing breach under the Maharashtra Ownership Flats (Regulation of the Promotion of Construction, Sale, Management and Transfer) Act 1963 and amounts to a continuing wrong.

Factual Background The appellant is a co-operative housing society. The respondent constructed Wings 'A' and 'B' and entered into agreements to sell flats with individual purchasers in accordance with the Maharashtra Ownership Flats (Regulation of the Promotion of Construction, Sale, Management and Transfer) Act 1963 (MOFA). The members of the appellant booked the flats in 1993 and were granted possession in 1997. According to the appellant, the respondent failed to take steps to obtain the occupation certificate from the municipal authorities.

There was an obligation on the respondent to provide the occupancy certificate and pay for the relevant charges till the certificate has been provided, however, the respondent time and again failed to provide the occupancy certificate to the appellant society. For this reason, a complaint was instituted in 1998 by the appellant against the respondent. The NCDRC on 20 August 2014 directed the respondent to obtain the certificate within a period of four months. Further, the NCDRC also imposed a penalty for any the delay in obtaining the occupancy certificate beyond these 4 months. Since 2014 till date, the respondent failed to provide the occupancy certificate.

In the absence of the occupation certificate, individual flat owners were not eligible for electricity and water connections. Due to the efforts of the appellant, temporary water and electricity connections were granted by the authorities. However, the members of the appellant had to pay property tax at a rate 25% higher than the normal rate and water charges at a rate which was 50% higher than the normal charge.

Analysis Obligations of Promoter under MOFA Section 3 of the MOFA imposes certain general obligations on a promoter. These obligations inter alia include making disclosures on the nature of title to the land, encumbrances on the land, fixtures, fittings and amenities to be provided, and to not grant possession of a flat until a completion certificate is given by the local authority. The responsibility to obtain the occupancy certificate from the local authority has also been imposed under the agreement to sell between the members of the appellant and the respondent on the latter.

Sections 3 and 6 of the MOFA indicate that the promoter has an obligation to provide the occupancy certificate to the flat owners. Apart from this, the promoter must make

payments of outgoings such as ground rent, municipal taxes, water charges and electricity charges till the time the property is transferred to the flat-owners. Where the promoter fails to pay such charges, the promoter is liable even after the transfer of property.

Limitation In the instant case, the appellant submitted that since the cause of action is founded on a continuing wrong, the complaint is within limitation.

Section 24A of the Consumer Protection Act 1986 provides for the period of limitation period for lodging a complaint. A complaint to a consumer forum has to be filed within two years of the date on which the cause of action has arisen.

Section 22 of the Limitation Act 1963 provides for the computation of limitation in the case of a continuing breach of contract or tort. It provides that in case of a continuing breach of contract, a fresh period of limitation begins to run at every moment of time during which the breach continues. A continuing wrong occurs when a party continuously breaches an obligation imposed by law or agreement. The continuous failure to obtain an occupancy certificate is a breach of the obligations imposed on the respondent under the MOFA and amounts to a continuing wrong.

The appellants, therefore, were entitled to damages arising out of this continuing wrong and their complaint is not barred by limitation.

"Rejecting the complaint as being barred by limitation, when the demand for higher taxes is made repeatedly due to the lack of an occupancy certificate, is a narrow view which is not consonance with the welfare objective of the Consumer Protection Act 1986."

Consumer Section 2(1)(d) of the Consumer Protection Act defines a 'consumer' as a person that avails of any service for a consideration. A 'deficiency' is defined under Section 2(1)(g) as the shortcoming or inadequacy in the quality of service that is required to be maintained by law.

In the present case, the NCDRC had held that the appellant is not a 'consumer' under the provisions of the Consumer Protection Act as they have claimed the recovery of higher charges paid to the municipal authorities from the respondent. Extending this further, the NCDRC observed that the respondent is not the service provider for water or electricity and thus, the complaint is not maintainable.

The respondent was responsible for transferring the title to the flats to the society along with the occupancy certificate. The failure of the respondent to obtain the occupation certificate is a deficiency in service for which the respondent is liable.

Thus, the members of the appellant society are well within their rights as 'consumers' to pray for compensation as a recompense for the consequent liability (such as payment of higher taxes and water charges by the owners) arising from the lack of an occupancy certificate.

[Samruddhi Co-operative Housing Society Ltd v. Mumbai Mahalaxmi Construction Pvt. Ltd, 2022 SCC OnLine SC 35, decided on 11.01.2022] Regarding completion certificate, Hon'ble Supreme Court in the case of Faqir Chand Gulati vs Uppal Agencies Pvt. Ltd. & Anr on 10 July, 2008 , Civil Appeal no 3302 /2005 (July 10, 2008) has said :

"25. Under the agreement, the builder is required to construct the ground floor in accordance with the sanctioned plan, and specifications and the terms in the agreement and deliver the same to the owner. If the construction is part of a building which in law requires a completion certificate or C&D forms (relating to assessment), the builder is bound to provide the completion certificate or C&D forms. He is also bound to provide amenities and facilities like water, electricity and drainage in terms of the agreement. If the completion certificate and C&D forms are not being issued by the Corporation because the builder has made deviations/violations in construction, it is his duty to rectify those deviations or bring the deviations within permissible limits and secure a completion certificate and C&D forms from MCD. The builder can not say that he has constructed a ground floor and delivered it and therefore fulfilled his obligations. Nor can the builder contend that he is not bound to produce the completion certificate, but only bound to apply for completion certificate. He cannot say that he is not concerned whether the building is in accordance with the sanction plan or not, whether it fulfills the requirements of the municipal bye-laws or not, or whether there are violations or deviations. The builder cannot be permitted to avoid or escape the consequences of his illegal acts. The obligation on the part of the builder to secure a sanctioned plan and construct a building, carries with it an implied obligation to comply with the requirements of municipal and building laws and secure the mandatory permissions/certificates.

26. The surviving prayer is no doubt only for a direction to the builder to furnish the completion certificate and C&D forms. It is not disputed that a building of this nature requires a completion certificate and building assessment (C&D forms). The completion certificate and C&D forms will not be issued if the building constructed is contrary to the bye-laws and sanctioned plan or if the deviations are beyond the permissible compoundable limits. The agreement clearly contemplates the builder completing the construction and securing completion certificate. The agreement, in fact, refers to the possibility of deviations and provides that if there are deviations, the builder will have to pay the penalties, that is do whatever is necessary to get the same regularized. Even if such a provision for providing completion certificate or payment of penalties is not found in the agreement, the builder cannot escape the liability for securing the completion certificate and providing a copy thereof to the

owner if the law requires the builder to obtain completion certificate for such a building.

27. A prayer for completion certificate and C&D Forms cannot be brushed aside by stating that the builder has already applied for the completion certificate or C&D Forms. If it is not issued, the builder owes a duty to make necessary application and obtain it. If it is wrongly withheld, he may have to approach the appropriate court or other forum to secure it. If it is justifiably withheld or refused, necessarily the builder will have to do whatever that is required to be done to bring the building in consonance with the sanctioned plan so that the municipal authorities can inspect and issue the completion certificate and also assess the property to tax. If the builder fails to do so, he will be liable to compensate the complainant for all loss/damage. Therefore, the assumption of the State Commission and National Commission that the obligation of the builder was discharged when he merely applied for a completion certificate is incorrect. Conclusion

28. The District Forum and National Commission did not examine the matter with reference to facts. The State Commission held that the complaint was not maintainable but purported to consider the factual question in a half-hearted and casual manner. The matter will now have to go back to District Forum for deciding the matter on merits. We, accordingly, allow this appeal as follows :

- a) The orders of the National Commission, State Commission and District Forum are set aside.
- b) The appellant's complaint is held to be maintainable.
- c) The District Forum is directed to consider the matter on merits and dispose of the matter in accordance with law, within six months from the date of receipt of this order.
- d) The respondents shall pay costs of Rs.25,000/- to the appellant. "

So these certificates are of utmost importance and cannot be brushed aside by the builders. In the present case not a single copy of any certificate has been filed by the opposite party which shows that they failed to comply the legal process as prescribed in the Act.

Now we come to the point of payment. The opposite party has stated that the payment of 2,334,150/- has been deposited by the complainant and there is no dispute regarding this payment. The same amount has been mentioned in the complaint so there is no dispute regarding the payment of above mentioned amount by the complainant to the opposite party.

Now it is clear that the builder could not deliver the possession of the apartment within the promised time as mentioned in the Provisional Allotment Letter. So in such circumstances he is entitled for compensation and interest as per the following case laws. Before discussing the case laws we should know the main object of the Consumer Protection Act.

What are the main objectives of consumer protection act?

The Consumer Protection Act, came into existence and implemented in 1986, provides Consumer Rights to prevent consumers from fraud or specified unfair practices. It safeguards and encourages and gives an opportunity to consumers to speak against insufficiency and flaws in goods and services. If traders, manufacturers and distributors follow any foul trade, this act protects their rights as a consumer.

On which products are these right applicable?

This Protection Act covers entire goods and services of all sectors that are public, private, or cooperative sectors, except those exempted by the central government. The act provides a floor for a consumer where one can file their complaint against the product and the forum takes an action against the concerned supplier and compensation is granted to the consumer for the inconvenience he/she has encountered.

Objectives of consumer protection act To Provide better and all round protection to consumer.

To Provide machinery for the speedy redressal of the grievances.

To Create framework for consumers to seek redressal.

To Provide rights to consumers.

To Safeguard rights of Consumers.

Let us know more about the rights and responsibilities of consumer Consumer Rights Listed below are the Rights of the Consumer Right to Safety- Before buying, a consumer can examine on the quality and guarantee of the goods and opt for ISI or AGMARK products.

Right to Choose- Consumer must have the right to choose from a variety and number of goods and in a competitive price Right to be informed- The buyers must be provided with complete information with all the necessary and adequate details of the product, make her/him act wise, and change the buying decision.

Right to Consumer Education- The consumer must be aware of his/her rights and avoid exploitation.

Right to be heard- The consumer will get due attention to express their grievances at a suitable platform.

Right to seek compensation- The consumer has the right to seek or ask for redressal against unfair and inhumane practices or exploitation of the consumer.

Consumer Responsibilities Responsibility to be aware - A consumer has to be careful of the safety and quality of products and services before purchasing.

Responsibility to think independently- Consumer should be well bothered about what they want and need and hence make independent choices.

Responsibility to speak out- The buyer should be fearless to speak out their problems and tell to traders what they exactly want
Responsibility to complain- It becomes the consumer's responsibility to express and file a complaint about their dissatisfaction with goods or services in a sincere and fair manner.

Responsibility to be an Ethical Consumer- Consumer must be fair and not engage themselves with any deceptive practice.

The Consumer Protection Act 1986 was enacted to provide for better protection of the interests of consumers and for that purpose to make provision for the establishment of Consumers Councils and other authorities for the settlement of consumers' disputes and for matters connected therewith (Preamble).

The Act Inter alia, seeks to promote and protect the rights of consumers such as --

(1) right to be protected against marketing of goods which are hazardous to life and property;

(2) right to be informed about the quality, quantity, potency, purity, standard and price of goods to protect the consumer against unfair trade practices;

(3) right to be assured, wherever possible, access to variety of goods at competitive prices;

(4) right to be heard and to assured that customers' interests will receive due consideration at appropriate forums.

(5) Right to seek redressal against unfair practices or unscrupulous exploitation of consumers; and (6) Right to consumer education The objects are sought to be

promoted and protected by the Consumer Protection Councils to be established at the Central and State levels.

The Act applies to all goods and services, except if otherwise provided by the Central Government by Notification. To provide speedy and simple redressal of consumer disputes, a quasi judicial machinery is set up at the District, State and Central levels. The three tier system of quasi judicial bodies will observe the principle of natural justice and are empowered to give relief of a specific nature and to award, wherever appropriate, compensation to consumers. Penalties for non-compliance of the orders given by the quasi judicial bodies have also been provided.

Thus the Consumer Protection Act is to serve the interests of the consumers. Consumer education and redressal of consumers' grievances are the two aspects of the Act. It makes good the loss a consumer suffers and increases the feeling of responsibility of the manufacturer, trader, supplier or businessman.

The provisions of the Act have to be construed in favor of the consumer to achieve the purpose of enactment as it is social benefit oriented legislation. The primary duty of the Court while construing the provisions of such an Act is to adopt a constructive approach subject to that it should not do violence to the language of the provisions and not contrary to attempted objective of the enactment.

Extent of Consumer Protection:

While other legislations may be either punitive or preventive, the Consumer Protection Act compensates the consumer. The provisions of the Act are in addition to and not in derogation of the provisions of any law at the time being in force (Sec 3). In *Maine Container Services South Pvt. Ltd. v. Go Garments* 1998 (3) SCC 247 it has been held that the Contract Act applies to all litigants before the Commission under the Consumers Protection Act. Passengers traveling in train suffering injuries and loss of Jewelry as a result of assault by unruly crowd are eligible for filing of complaint before State Commission is maintainable notwithstanding the provisions of sections 100 and 103 of Railways Act, 1889. The Consumer Protection Act therefore gives the consumer an additional remedy besides those which may be available under other existing laws. Existence of an arbitration clause in the agreement is no bar to the entertainment of complaint by the Redressal Agency as the remedy under the Act is in addition to the provisions of any other law. However, the Consumer Forums under the Act have not taken over the jurisdiction of civil Courts. If the dispute between the parties is pending in Civil Court no Consumer Forum will adjudicate the dispute. Similarly if evidence be laid by the parties to the dispute is voluminous or complicated the parties will be referred to the appropriate Civil Court.

Consumers Protection Act, thus enshrines the rights of a consumer to be informed about the quality, quantity, potency, price etc., of the goods to be protected against unfair trade practices, to seek inexpensive and expeditious redressal of grievances before the Consumer Forums. Consumer Protection Act is a benevolent piece of

legislation to protect a large body of consumers from exploitation.

So it is clear that the Consumer Protection Act is enacted for the consumers, to safeguard their rights and to protect them from the builders.

Before discussing further we have to see the following case laws of the Hon'ble Supreme Court, Hon'ble NCDRC.

Ghaziabad Development Authority v. Balbir Singh In the Supreme Court of India
Name of the Case Ghaziabad Development Authority v.

Balbir Singh Citation (2004) 4 SCC 65 Year of the Case Petitioner Ghaziabad Development Authority Respondent Balbir Singh The case of Ghaziabad Development Authority v Balbir Singh is a landmark decision that laid down certain judicial standards regarding the grounds on which compensation may be awarded, particularly, in matters of allotment of flats/plots by land development authorities. Compensation under consumer protection laws is required to recompense for loss or injury suffered by consumers, and therefore, the quantum of compensation to be awarded would necessarily have to be determined based on the facts and circumstances of each case. This decision set an established precedent on the issue of compensation to be awarded in consumer disputes, and its principles have been relied upon in numerous subsequent cases.

Introduction The consumer protection laws establish a redressal mechanism whereby consumers can claim monetary reliefs for defective goods, deficiency in service, and unfair trade practices. Sections 14 and 22 of the Consumer Protection Act, 1986 empower the District, State, and National Consumer Disputes Redressal Commission to "to pay such amount as may be awarded by it as compensation to the consumer for any loss or injury suffered by the consumer due to the negligence of the opposite party". Such monetary reliefs i.e., compensation awarded would have to be based on the facts and circumstances of each case, since the loss and injury suffered would vary. Given the absence of a straight-jacket formula for the determination of the amount of compensation to be awarded in each case, it follows that there can be no uniformity in the award of compensation.

It is for the Consumer Forum to grant compensation to the extent it finds it reasonable, fair, and proper in the facts and circumstances of a given case according to the established judicial standards where the claimant can establish his charge.[1] These 'established judicial standards' have been laid down in a plethora of cases. The case of Ghaziabad Development Authority v Balbir Singh[2] is a landmark decision that discussed the grounds on which compensation may be awarded, particularly, in matters of allotment of flats/plots by land development authorities. It set an established precedent on the issue of compensation to be awarded in consumer disputes, and its principles have been relied upon in numerous subsequent cases.

Background and Facts of the Case The present case of Ghaziabad Development Authority v Balbir Singh arose out of an appeal directed against the judgment and award passed by the National

Consumer Disputes Redressal Commission (NCDRC) awarding an interest @ 18% per annum. The Commission was considering a bunch of matters, the lead being the case of Haryana Urban Development Authority vs. Darsh Kumar, where it held that in cases of deficiency of service by development authorities, the rate of interest awarded must be 18% per annum. Following this, the Commission disposed of subsequent matters by its preceding award. Numerous appeals were filed before the Supreme Court against the decision of the Commission in various cases, primarily against its award of 18% interest.

Since the Supreme Court was considering a wide number of matters relating to allotment of land by development authorities, the facts of each case vary. In some cases, the scheme had gotten canceled after the payment of monies and allotment of flats/plots. Delivery of possession of the flats was therefore refused to the allottees. In some cases, either possession was offered at an increased rate at a much later date possession or was offered but not taken by the party. Possession was not delivered in some cases despite payment of monies and no refusal to deliver possession. In some cases, the construction was of sub-standard quality or it was incomplete, or the authority demanded extra amounts from the party which was paid only by some. In some cases, allotments were made and possession offered of flats/land which was encumbered or occupied by some other party.

The appeal in the Supreme Court was filed due to the Commission granting interest at the rate of 18% per annum irrespective of the type of case or amount of delay and without even going into the facts of the case. Complainants had asked for the refund of amounts wrongly collected and in other cases, asked for a refund of the amounts paid.

Issues Involved Whether the grant of interest at the rate of 18% per annum by the National Consumer Disputes Redressal Commission in all cases is justifiable?

Related Provisions Section 14 of the Consumer Protection Act, 1986 Section 22 of the Consumer Protection Act, 1986 **Related Cases** The Supreme Court relied upon the case of Lucknow Development Authority v. M. K. Gupta[3] which firstly widened the scope of "service" defined under Section 2(1)(o) of the Consumer Protection Act, 1986 to include the housing construction or building activities carried on by private or statutory bodies.

The Court relied upon the English case *Geddis v. Proprietors of Bann Reservoir*[4] which gave a wide connotation to the word compensation, holding that "Compensation has not been defined in the Act. According to the dictionary, it means, 'compensating or being compensated; thing given as recompense;'. In a legal sense, it may constitute actual loss or expected loss and may extend to physical mental or even emotional suffering, insult or injury or loss."

Judgment The Supreme Court, at the outset, reiterated the position taken in the case of Lucknow Development Authority v. M.K. Gupta, and held that "the Consumer Protection Act has a wide reach and the Commission has jurisdiction even in cases of service rendered by statutory and public authorities". It further held that the power of the NCDRC extends to awarding compensation to consumers for misfeasance in the public office i.e. an act which is oppressive or capricious or arbitrary or negligent provided loss or injury is suffered by a citizen. Therefore, it upheld the appeals

filed before it to the extent that it confirmed the jurisdiction of the NCDRC to award compensation in cases of service rendered by statutory & public authorities (the land development authorities in the present case).

As to the issue of whether the grant of interest at the rate of 18% per annum by the NCDRC in all cases is justifiable, the Supreme Court held in the negative. It stated that "the power to and duty to award compensation does not mean that irrespective of facts of the case compensation can be awarded in all matters at a uniform rate of 18% per annum." It held it to be unsustainable. The Court further stated that the "Award of compensation must be under different separate heads and must vary from case to case depending on the facts of each case." The purpose of awarding compensation is to recompense for a loss or injury suffered and such compensation would therefore be proportional to the amount of loss and injury.

While considering the compensation to be awarded to the consumers in cases of deficiency of service by Development Authorities, the Court laid down a range of principles for the determination of the amount of compensation, summarised below:

To award compensation, the Forum or the Commission must determine that service has been deficient and/or misfeasance in public office which has resulted in loss or injury. While no hard and fast rule can be laid down, the Court gave a few instances where the award of compensation would be justifiable, including where possession is not handed over within the intimated period even though allotment is made and the price is paid. In such cases, the loss could be determined based on loss of rent which could have been earned if possession was given. Compensation could also be the scheme has been canceled without any justifiable cause, after the allotment.

Compensation cannot be uniform and to illustrate this, the Court lays down the principle to be followed for the determination of compensation in two cases- - (a) where the delivery of possession is being directed, and (b) where only the monies are directed to be returned or refunded by the Court. In case (a), the compensation for harassment will necessarily have to be less since in a way the aggrieved party is being compensated by an increase in the value of the property he is getting. In case (b) however, the party is suffering a greater loss since he has been deprived of the flat/plot, and his expectation of delivery of possession. He would also be denied the benefit of an increase in the value of land and the compensation thereof. Therefore, the compensation to be awarded in such cases would have to be higher than in case (a).

The Court held that "such compensation has to be worked out after looking into the facts of each case and after determining what is the amount of harassment/loss which has been caused to the consumer."

Compensation would include compensation for physical, mental, or even emotional suffering, insult, or injury or loss.

Awarding of Compensation in the Event of Deficiency in Service Rendered The consumer protection laws have a wide reach and the consumers are entitled to receive compensation for deficiency in services rendered by statutory and public authorities. The Consumer Commissions have been vested with the jurisdiction to award the value of goods or services and compensation. On being satisfied that a complainant is entitled to compensation for loss or injury or harassment or mental agony or oppression, it must direct the authority to pay compensation. A wide discretion has been given to determine the quantum of compensation for any loss or damage suffered by a consumer, to redress any injustice. However, it is a well-established principle that the computation of compensation has to be fair, reasonable, and must reconcile with the loss or injury suffered. The Consumer Forum is cast with the duty to take into account all relevant factors for arriving at the compensation to be paid.

This landmark decision has set a precedent on the matter of compensation to be awarded in matters relating to allotment of land by development authorities and has been relied upon in many subsequent cases of the Supreme Court. In the case of H. P. Housing Board v Varinder Kumar Garg[5] and Haryana Urban Development Authority vs Darsh Kumar[6], the Supreme Court directed the Commission to follow the principles laid down in the case of Ghaziabad Development Authority vs. Balbir Singh in future cases.

Conclusion This landmark decision laid down rudimentary principles and set judicial standards concerning the awarding of compensation and the determination of the quantum of compensation to be awarded. It struck down the mechanical application of a fixed rate of interest at 18% per annum by the National Commission in numerous cases, asserting that there can be no hard and fast rule.

The principles enunciated go a long way in ensuring that consumers are compensated appropriately and proportionally for the loss and injury suffered. This decision has further strengthened the consumer protection laws by bringing clarity to how the consumer is required to award compensation.

References [1] Chief Administrator, H.U.D.A. & Anr. v. Shakuntla Devi, (2017) 2 SCC 301 [2] (2004) 5 SCC 65 [3] (1994) 1 SCC 243 [4] (1878) 3 AC 430 [5] (2005) 9 SCC 430 [6] (2005) 9 SCC 449 Regarding delay of possession the Hon'ble Supreme Court has held in the following case law, "In Kolkata West International City Pvt. Ltd. Vs. Devasis Rudra Citation : 2019 Latest Caselaw 299 SC Judgment Date : Mar/2019[Civil Appeal No. 3182 of 2019 @ SLP (C) No(S). 1795 of 2017], the Hon'ble Supreme Court has held regarding delay in giving possession.

"This appeal arises from the judgment dated 21 November 2016 of the National Consumer Disputes Redressal Commission¹. A Buyer's Agreement dated 2 July 2007 was entered into between the appellant and the respondent. The respondent paid an

amount of Rs 39,29,280 in 2006 in terms of a letter of allotment dated 20 September 2006. The agreement between the parties envisaged that the appellant would hand over possession of a Row House to the respondent by 31 December 2008 with a grace period of a further six months ending on 30 June 2009.

The respondent filed a consumer complaint before the West Bengal State Consumer Disputes Redressal Commission² in 2011 ¹ "NCDRC" "SCDRC" ² praying for possession of the Row House and in the alternative for the refund of the amount paid to the developer together with interest at 12% per annum. Compensation of Rs 20 lakhs was also claimed. The SCDRC allowed the complaint by directing the appellant to refund the moneys paid by the respondent together with interest at 12% per annum and compensation of Rs.5 lakhs. The NCDRC has modified this order by reducing the compensation from Rs 5 lakhs to Rs 2 lakhs. Mr. Ravinder Narain, learned counsel appearing on behalf of the appellant submits that the primary relief which was sought in the consumer complaint was for delivery of possession. According to the appellant, the completion certificate was received on 29 March 2016, which was intimated to the respondent on 11 April 2016.

Moreover, before the SCDRC, in its written submissions, the appellant had offered possession of the Row House to the respondent. It has also been stated that in a complaint which was filed by an association representing the allottees of 161 Row houses, a settlement was arrived on 11 September 2018 before the NCDRC specifying the date on which possession would be handed over together with interest at 6% per annum instead of 4% as mentioned in the Buyers' Agreement. It was urged that the developer having made a substantial investment in terms of the agreement, a direction for refund is not warranted. It has also been urged that the SCDRC in the course of its decision erroneously observed that the developer was unable to fulfill its obligation to complete the construction within the agreed period and it was not certain when the Row house would be handed over. It was urged that this observation by the SCDRC is contrary to the record since before it, a specific offer of possession was made.

It has been urged on behalf of the respondent by Mr. Supriya Bose, learned senior counsel that a consumer complaint was filed in the year 2011. At that stage, the appellant was bonafide ready and willing to accept possession. However, nearly seven years have elapsed after the extended date for the delivery of possession which expired on 30 June 2009. In spite of this, no offer of possession was forthcoming. Learned senior counsel submitted that the letter dated 22 March 2016 of the developer was conditional and despite the subsequent letter dated 11 April 2016, no formal offer of possession was ever made by the appellant. Moreover, it was urged that the interest awarded by the NCDRC at the rate of 12% is just having regard to the economic loss and hardship suffered by the respondent. While considering the rival submissions, we must at the outset advert to the following clause which was contained in the Buyer's Agreement:

"Unless prevented by circumstances beyond the control of the company and subject to Force Majeure, KWIC shall ensure to complete the said unit in all respect within 31st December 2008 only for the Cluster D. Further there will be a grace period of 6 months (up to 30th June, 2009) from the date of completion. In case the possession is not transferred after expiry of the said grace period, KWIC will be liable to pay prevailing 4 saving Bank interest of the State Bank of India for each month of delay on the money given by the allottee as compensation but no compensation will be paid on account of force majeure reasons." It is the above clause which is pressed in aid by the developer. Under the aforesaid clause, any delay beyond 30 June 2009 would result in the developer being required to pay interest at the prevailing savings bank interest of the State Bank of India.

Interestingly, where the buyer is in default, the agreement stipulates that interest at the rate of 18 per cent from the date of default until the date of payment would be charged for a period of two months, failing which the allotment would be cancelled by deducting 5% of the entire value of the property. The agreement was evidently one sided. For a default on the part of the buyer, interest at the rate of 18% was liable to be charged. However, a default on the part of the developer in handing over possession would make him liable to pay interest only at the savings bank rate prescribed by the SBI. There is merit in the submission which has been urged by the buyer that the agreement was one sided.

The clause which has been extracted in the earlier part of this order will not preclude the right and remedy available to the buyer to claim reasonable interest or, as the case may be, compensation. The essential aspect of the case which is required to be analysed is whether the buyer was entitled to seek a refund or was estopped from doing so, having claimed compensation as the primary relief in the consumer complaint.

The Buyer's Agreement is dated 2 July 2007. In terms of the agreement, the date for handing over possession was 31 December 2008, with a grace period of six months. Even in 2011, when the buyer filed a consumer complaint, he was ready and willing to accept possession. It would be manifestly unreasonable to construe the contract between the parties as requiring the buyer to wait indefinitely for possession. By 2016, nearly seven years had elapsed from the date of the agreement. Even according to the developer, the completion certificate was received on 29 March 2016. This was nearly seven years after the extended date for the handing over of possession prescribed by the agreement. A buyer can be expected to wait for possession for a reasonable period.

A period of seven years is beyond what is reasonable. Hence, it would have been manifestly unfair to non-suit the buyer merely on the basis of the first prayer in the reliefs sought before the SCDRC. There was in any event a prayer for refund. In the circumstances, we are of the view that the orders passed by the SCDRC and by the

NCDRC for refund of moneys were justified. Having regard to all the facts and circumstances of the case, we modify the order of the NCDRC by directing that the appellant shall pay interest at the rate of 9% per annum to the respondent instead and in place of 12% as directed by the NCDRC. Save and except for the above modification, we affirm the directions of the NCDRC.

The amount outstanding in terms of the directions of this Court shall be released out of the moneys which have been deposited by the appellant. The balance, if any, that remains shall be refunded to the appellant. The appeal is, accordingly, disposed of. There shall be no order as to costs. Pending application(s), if any, shall stand disposed of."

In the case of PRIYANKA MITTAL & ANR. V. PARSVNATH DEVELOPERS LTD. & ANR. (NCDRC). These appeals arise out of single order of State Commission, hence, decided by common order. These appeals have been filed against the order dated 25.2.2015 in Complaint Nos. 18 of 2013- Nalin Bhargava & Anr. Vs. Parsvnath Developers Ltd. & Anr.; 34 of 2013- Jasleen Viswanathan & Anr. Vs. Parsvnath Developers Ltd. & Anr.; 58 of 2011- Janmejai Mani Tiwari Vs. Parsvnath Developers Ltd. & Anr.; 68 of 2013- Indu Singh Vs. Parsvnath Developers Ltd. & Anr.; 69 of 2013- Poonam Sagar Vs. Parsvnath Developers Ltd. & Anr.; 86 of 2010- Priyanka Mittal & Anr. Vs. Parsvnath Developers Ltd. & Anr.; 101 of 2011- Mohd. Aslam Khan & Anr. Vs. Parsvnath Developers Ltd. & Anr.; 130 of 2012- Dr. Sunil Kr. Singh & Anr. Vs. Parsvnath Developers Ltd. & Anr.; 49 of 2012- Neera Mittal & Anr. Vs. Parsvnath Developers Ltd. & Anr.; 74 of 2011- Deepak Bhalla Vs. Parsvnath Developers Ltd. & Anr.; 87 of 2010- Syed Gufran Ali Alvi & Anr. Vs. Parsvnath Developers Ltd. & Anr.; 96 of 2011- Uppasana Malik Vs. Parsvnath Developers Ltd. & Anr.; 175 of 2013- Umesh Chandra Dixit & Anr. Vs. Parsvnath Developers Ltd. & Anr.; 97 of 2011- Pravin Kumar Goel & Anr. Vs. Parsvnath Developers Ltd. & Anr. which complaints were partly allowed.

The Hon'ble NCDRC held that:

"Brief facts of the cases are that opposite parties/respondents are engaged in the activity of housing construction and accordingly they have launched a project named as Parsvnath Planet situated in Gomti Nagar, Lucknow. The project was demonstrated to be very lucrative and made attractive to the vendees, in order to procure/collect money from the needy persons demonstrating themselves to be excellence in the field of construction activity as compared to other builders and assured the buyers/complainants that it has been duly approved by the Lucknow Development Authority and necessary permission has also been obtained from them. The emphasis was made by the opposite parties that the possession of the Unit shall be given within a scheduled period of 36+6=42 months stipulated in agreements executed in between the parties for the project launched in the year 2006. The complainants/appellants attracted by the promise and assurance of the opposite parties, somehow managed and arranged the money from their personal sources as well as on loan at attractive rate of interest and the hard earned money was paid by them to the opposite parties in a hope that the possession of the units shall be

provided to them in the year 2009 and they can leave peacefully in their own houses, since the complainants are living in rented houses.

The complainants visited the construction site of the opposite parties after depositing the entire amount, where it was revealed that the construction activities were on halt and the persons available on the site told the complainants that the apartments are likely to be completed till 2015. Even the partial construction done by the opposite parties was defective and did not match the specifications provided in the agreement. The complainants were shocked on hearing it and observing the site. The complainants immediately contacted the Area Manager, who told the complainants that there is some delay in the construction of the apartment and the apartments shall be ready till June, 2010. The complainants have to repay the amount taken on loan alongwith interest without getting the possession of the allotted units causing irreparable loss and injury to them. The complainants have come to know that the opposite parties have invested the funds earmarked for this project into their other projects in other city due to which they have not been able to complete the project in time. Besides this, it has also come to the light that although the opposite parties had collected huge funds from the buyers but in spite of that the opposite parties have miserably failed to pay the dues of Lucknow Development Authority which forced the Lucknow Development Authority to issue coercive measures against the opposite parties for the recovery of their dues. Alleging deficiency on the part of opposite parties/ respondents, complainants filed separate complaints before State Commission. Aggrieved by the order of Hon'ble State Commission, these appeals preferred before Hon'ble National Consumer Disputes Redressal Commission.

Hon'ble NCDRC discussed various case laws and after hearing the parties held, "Learned Counsel for appellants submitted that as complainants have been deprived of possession for a long period beyond agreed period, it amounts to restrictive trade practice under Section 2 (nnn) of Consumer Protection Act and complainants are entitled to get compensation. Section 2 (nnn) runs as under:- means a trade practice which tends to bring about restrictive trade practice manipulation of price or its conditions of delivery or to affect flow of supplies in the market relating to goods or services in such a manner as to impose on the consumers unjustified costs or restrictions and shall include- Delay beyond the period agreed to by a trader in supply of such goods or in providing the services which has led or is likely to lead to rise in the price; Any trade practice which requires a consumer to buy, hire or avail of any goods, or, as the case may be, services as condition precedent to buying, hiring or availing of other goods or services; Perusal of aforesaid provision reveals that when opposite party delays in delivery of goods which leads to rise in the price of goods meaning thereby, more price is charged from complainant, it amounts to restrictive trade practice. In the case in hand, opposite party on account of delayed delivery of possession is not charging higher rate than the agreed rate for delivery of possession of flat, so, it does not fall within the purview of restrictive trade practice under Section 2(nnn) of Consumer Protection Act."

"Admittedly, agreements were executed in 2006 and as per agreements, possession of flats was to be delivered within 42 months, meaning thereby, possession was to be given in the year 2009-2010 and possession has not been handed over so far though year 2016 has started. No doubt, complainants are entitled to get penalty amount for delayed delivery of possession as per clause 10(c) of the agreement but opposite party cannot be permitted to avail benefit of aforesaid clause for indefinite period. This penalty clause should be allowed for the benefit of parties for a limited period and in the cases in hand, I deem it appropriate to extend applicability of aforesaid clause for a period of one year beyond 42 months and after that, complainants are certainly entitled to compensation. Opposite party cannot be allowed to avail huge funds of complainants by paying merely Rs. 5/- per sq. ft. for example, complainants who have purchased flat measuring 164.901 sq. mtr., they have made payment of about Rs. 31.00 to 32 lakhs and in the garb of clause 10 (c), opposite party is paying penalty @ approximately Rs. 9,000/- per month against enjoying funds more than Rs. 30.00 lakhs. As complainants have been deprived to shift to their flats for a long period which would not only have given them satisfaction of living in their own house but also have raised their social status and opposite party has enjoyed funds of complainants for a long period, I deem it appropriate to allow compensation @ Rs. 15,000/- p.m. to the complainants who have applied for flats upto 175 sq. mtr and Rs. 20,000/- per month to complainants who have applied for flats above 175 sq. after 54 months of execution of agreement till delivery of possession."

Against this judgment, parties went to Hon'ble Supreme Court. The judgment of Hon'ble Supreme Court is:-

In Nalin Bhargava vs. Parsvnath Developers Ltd. CA 6662/2018 @ SLP(C) 7596/2016 etc and other related civil appeals on 13 July, 2018, Hon'ble Supreme Court held:-

"Leave granted in all the special leave petitions. CA 6662/2018 @ SLP(C) 7596/2016 etc. It is submitted by Mr. M.L. Lahoty, learned counsel appearing for the appellants in all the appeals that the possession has been handed over and the deficiencies have been removed and, therefore, he has no grievance. However, Mr. Lahoty would insist that there should be imposition of costs as compensation.

Mr. Sachin Datta, learned senior counsel appearing for the developer has raised objections with regard to imposition of costs.

Having heard learned counsel for the parties, we are of the considered opinion that the cause of justice would be best subserved if each of the appellants in the present appeals are given Rs.1,50,000/- (Rupees one lakh fifty thousand only) per flat, towards costs. When we say "cost", we mean costs alone and nothing else."

In a latest case, on Supreme Court in Petition(s) for Special Leave to Appeal (C) No(s). 24059/2022 (Arising out of impugned final judgment and order dated 19-09-2022 in RP No. 1187/2022 passed by the National Consumers Disputes Redressal Commission, New Delhi) MEERUT DEVELOPMENT AUTHORITY Petitioner(s) VERSUS SURESH CHAND GARG Respondent(s) (FOR ADMISSION and IA No.202401/2022-EXEMPTION FROM FILING O.T.) Date: 05-01-2023 This petition was called on for hearing today.

Held :

"We have heard learned counsel for the petitioner and find that the order passed by the Consumer Commission was reasonable and there was no reason of filing appeal/revision against the substantive order passed on the consumer complaint by the District Consumer Commission dated 06.09.2019. Consequently, the present petition is disposed of with a direction, to sum up the litigation which is pending for a long time, that let the order of the District Consumer Commission dated 06.09.2019 shall be complied with and the respondent be refunded the entire deposit with simple interest at the rate of 12% per annum within a further period of 60 days from today, failing which it shall carry interest at the rate of 15% per annum until actual payment."

So the Hon'ble Supreme Court has specifically said that the rate of interest shall be 12% if paid within 60 days from the date of judgment otherwise the rate of interest will be 15% per annum until actual payment.

The Hon'ble Supreme Court further goes and in the following judgement the rate of interest against the builder was given the same rate of interest which the builder takes from the buyer in case of default of payment.

CIVIL APPEAL NO(s).4913 of 2015 M/s. ASHOKA INVESTMENT CO. vs. M/s. UNITED TOWERS INDIA (PVT.) LTD. SC Judgement OCTOBER 11, 2022.

Vikram Nath, J.

This appeal by the Consumer under Section 23 of the Consumer Protection Act, 1986 has been filed assailing the correctness of the order dated 16.03.2015 passed by the National Consumer Disputes Redressal Commission 2, (NCDRC), Delhi in Original Petition No.377 of 2000 between M/s. Ashoka Investment Company Vs. M/s. United Towers India (Pvt.) Ltd. By the said order, the NCDRC directed the respondents to refund an amount of Rs.4,95,000/ (four lakhs and ninety five thousand) 1 In short "the 1986 Act" 2 In short "NCDRC" being total sale consideration to the appellant with interest @ 9 % per annum w.e.f. 17.01.1995 till the date of refund/compliance.

2. The admitted facts are that, the appellant on 12.05.1980 applied for purchase of two flats bearing Nos.501 and 502 on the 5th Floor, 1st Block, Krishna Apartments, Bangalore for a total sale consideration of Rs.4,95,000/ (four lakhs and ninety five thousand). Along with the application,

the appellant paid Rs.1,00,000/□(one lakh) each for the two flats by way of two Demand □Drafts.

3. An agreement to sell was executed between the parties on 17.05.1980. As per para 3 of the agreement, possession was to be delivered within a period of 18□21 months under normal conditions subject, however, to the availability of cement, steel and other building materials, electrical or power connections, drainage connection and subject to and including any Act of God, drought, flood or any other natural calamity and/or war restrictions by the Government, Municipal Corporation or any other public authorities or any other acts beyond the control of the builders.

4. Under paragraph 6 of the agreement, it is provided that if there was any default in payment of installments, the builder would be at liberty to insist for payment of the amount due together with interest @ 18% per annum from the date of default till the date of payment on the defaulted amount.

5. The entire amount of Rs.4,95,000/□(four lakhs and ninety□five thousand) has since been paid by the appellant to the respondent. A dispute arose sometimes in 1991 when the respondent raised demand of Rs.1,56,046/□(one lakh fifty six thousand and forty six) with respect to one apartment and Rs.1,62,202/□(one lakh sixty two thousand and two hundred two) for the other apartment. These demands were raised vide bill dated 15.12.1991. These demands were objected to by the appellant and a request was made to hand over the possession of the two flats.

6. Apparently, possession was not given and, thereafter, it appears that in January, 1999, the appellant visited the apartments only to find that both the apartment Nos.501 and 502 had been transferred by the respondent in favour of third parties. It was thereupon that the appellant made enquiries and came to know that the respondent had cancelled the allotment on 17.01.1995 and, thereafter, transferred it to the third parties.

7. After giving due notice, the appellant approached the NCDRC by way of a complaint praying for following reliefs:

"(a) To direct the Opposite Party to forthwith hand over to the Complainant vacant and peaceful possession of the flats allotted to it being Flats No.501 and 502, Krishna Apartments, Corporation No.13, Ali Asker Road, in Corporation Division No.59, Bangalore and to further pay a sum of Rs.22,50,000/□towards delayed delivery till the date of the application together with damages in the sum of Rs.3,00,000/□as specified in para 22 of the application:

(b) In the alternative to pay to the Complainant a sum of Rs.48,27,000/□as detailed in Paras 21 and 22 above, with pendente lite and further interest at the rate of 18% per annum.

(c) Costs of and incidental to these proceedings be provided for, and

(d) Such other and further orders as this Hon'ble Commission may deem fit and proper in the circumstances of the case be passed."

8. The respondent contested the complaint on technical grounds as also on merit. According to the respondent, the appellant was not a consumer and further that the cancellation had taken place after several opportunities and due notice. The appellant had disputed receiving of any notice.

9. The NCDRC by the impugned order held that the appellant was a consumer as the amendment in the 1986 Act has been brought in 2003 whereby a person who obtains goods for resale or for any commercial purpose was not to be treated as a consumer within the meaning of the definition of consumer provided under Section 2(1)(d)(i) of the 1986 Act. Further, the NCDRC also found fault on the part of both the parties. The appellant not approaching the Commission with clean hands, with much delay and further the respondent conducting himself in a high handed and arbitrary manner. It accordingly disposed of the complaint by directing the respondents to refund the amount along with interest @ 9% w.e.f. 17.01.1995 till the date of refund/compliance.

10. After hearing learned counsel for the parties and perusing the material on record, we enquired from the respondents, as to whether, the amount as awarded by the NCDRC in the impugned order dated 16.03.2015 has been paid to the appellant or not. We were informed that amount has not been paid so far. No justification has come forward as to why the awarded amount was not tendered to the appellant. The appellant has pressed for the entire complaint being allowed as per the relief claimed therein. On the other hand, the respondent has sought to justify the order of NCDRC. However, there is no appeal by the respondent. The appellant has also pressed vehemently that respondent should be called upon to produce the sale deeds of the two flats in question, transferred in favour of the third parties and that the said amount ought to be paid to the appellant along with other claims, the respondent has unjustly enriched itself by the aforesaid conduct. On the other hand, this request has been resisted by the respondents.

11. Having considered the submissions of the learned counsel for the parties, we are in agreement with the findings recorded by the NCDRC regarding the conduct of both the parties, however, we feel that in the fitness of things and in the interest of both the parties considering the nature of agreement made and also their conduct that the order of the NCDRC requires to be modified. The rate of interest awarded is only 9%. Once, we find that under the agreement, in the event of default, the appellant's liability to pay interest on the defaulted amount could go up to 18%, it would be just and proper in the facts of the present case that 18% interest be awarded on the refund amount.

12. We accordingly partly allow this appeal and in partial modification of the impugned order of the NCDRC, we direct that respondent will refund the amount of Rs.4,95,000/ (four lakhs and ninety five thousand) being the total sale consideration to the appellant along with interest @ 18% per annum w.e.f. 17.01.1995 till the date, it is paid. The said amount be paid at the earliest and in any case within a period of four weeks from today.

So it is clear that the rate of interest should be same as the builder receives from a buyer in case of default of payment. It is justice because if a buyer is charged high rate of interest, in default why

should the builder be not pay the same rate of interest to the buyer?

These builders are just earning money from the consumers to whom they issued allotment letters and got a huge amount. They keep this amount for a long time and earn interest on it. Property dealing is that part of business where they never pay a penny to the consumers on their amounts deposited for a long-term or if they pay, they pay a meagre interest of about 5% or so but they charge 18 to 24% or more if the consumers default in depositing any instalment. It reminds us the story of "The Merchant of Venice" The Merchant of Venice is the story of a Jewish money lender Shylock who demands that an antisemitic Christian offer "a pound of flesh" as collateral against a loan. These acts of builders also remind us the age of Sahukari during ancient India and also during British Raj. Whether these builders have power to frame their own law? They put their terms and conditions in such a way that the sufferer will always be the consumer. The Consumer Protection Act 1986 has been enacted for the benefits of consumers, so the courts dealing with Consumer Protection Act 1986 should come forward for their rescue. The courts are not governed by the builders but they are governed by the law, Custom and Usages. Now in the background of all the facts and also the facts of the present case, we will also discuss something more.

Now we see the present case. There is no completion certificate. There is no occupancy certificate. Delivery of possession has not been given on the date as promised by the opposite parties. They have become defaulter in not providing the unit to the complainant within the time as mentioned by them in the agreement. In this case the opposite party has stated in its written statement, filed in September 2014, that is after the due date of delivery of possession (July 10, 2011), that "at present, the sum of 6,255,593/- is due and payable against the said apartment by the complainant." Now the question arises that first the opposite party did not file any lay out plan and also did not file the present status of the tower in which the said apartment is situated. If it is construction linked plan, what is the state of construction? The opposite party did not disclose it. So the opposite party has no right to demand any amount till the construction reaches at the level at which he has a right to demand. The opposite parties are defaulter in this case, so they are not entitled for any demand after July 10, 2011, the expected date of delivery of possession of the apartment.

Now the opposite party has threatened for the cancellation of the allotment. Because the opposite party is himself defaulter in this case and could not deliver the possession of the apartment as promised by him, he is not authorised to cancel the allotment of the apartment and if he has cancelled, it is null and void and will not operate against the complainant. The total cost of the apartment with basic price and other charges have been shown as 6,082,000/- out of which the opposite party has admitted in his written statement that he has received 2,334,150/-. Now it is not clear under what circumstances the total price of the apartment has been increased from 6,082,000/- to 9,264,775/- which is against the payment plan, given to the complainant. So this amount is also not admissible in this case. So from all the circumstances it is clear that the opposite party failed to deliver the possession of the apartment within the time promised by him so he is liable to pay compensation, rent, interest and other charges and now he will not be entitled to any type of stamp duty for the purpose of registration. So the complaint case is decided accordingly.

ORDER 1- The opposite parties are directed jointly and severally to hand over the physical possession of the fully finished flat no. K-12 in Kalypso Court having an area of 1885 ft² within 30 days from the date of judgement of this complaint case otherwise after 30 days from the date of judgement of this complaint case, the opposite parties jointly and severally shall be liable to pay 1 lakh per month till the final delivery of possession and registration of the sale deed of the apartment in question with all the necessary NOC's along with Completion Certificate and Occupancy Certificate.

2- The opposite parties are directed jointly and severally to pay interest at a rate of 12% per annum on the deposited amount from the respective date of deposits if paid within 30 days from the date of judgement of this complaint case otherwise the rate of interest shall be 15% per annum from the respective date of deposits till the actual date of delivery of possession of the apartment in question.

3- The opposite parties are jointly and severally directed to pay a sum of 5 lakhs as damages and compensation for committing deficiency in service to the complainant within 30 days from the date of judgement of this complaint case with interest at a rate of 12% per annum from 01.07.2011 (the expected date of delivery of the apartment) otherwise the rate of interest shall be 15% per annum from 01.07.2011 till the actual date of delivery of the apartment in question.

4- The opposite parties are directed jointly and severally to pay rent to the complainant at a rate of 15,000/- per month from 01.07.2011 without any interest if paid within 30 days from the date of judgement of this complaint case otherwise they will pay interest at a rate of 12% per annum on this amount from 01.07.2011 till the actual date of delivery of the apartment in question.

5- The opposite parties are directed jointly and severally not to cancel the allotment and if cancelled, set aside it. The opposite parties are directed jointly and severally not to charge any interest on the balance money keeping in view that the total price of the apartment with all other charges is 6,082,000/-.

6- The opposite parties are directed jointly and severally to pay 50,000/- to the complainant towards cost of the case.

7- Regarding clause ix of the relief, the opposite parties are directed jointly and severally to pay 30 lakhs to the complainant towards mental agony, torture, depression within 30 days from the date of judgement of this complaint case with interest at a rate of 12% from 01.07.2011 otherwise the rate of interest shall be 15% per annum from 01.07.2011 till the date of actual delivery of possession of the apartment as stated in the relief -1.

All the decretal amount shall be paid within 30 days from the date of judgment of this complaint case, otherwise the opposite parties shall pay interest as mentioned here in above. If it is not paid within 30 days from the date of judgment of this complaint case, the complainant shall be entitled to present Execution proceedings before this court at the cost of the opposite parties.

The stenographer is requested to upload this order on the Website of this Commission today itself.

Certified copy of this judgment be provided to the parties as per rules.

(Vikas Saxena)

(Rajendra Singh)

Member

Presiding Member

Judgment dated/typed signed by us and pronounced in the open court.

Consign to the Record-room.

(Vikas Saxena)

(Rajendra Singh)

Member

Presiding Member

JafRi, PA I

[HON'BLE MR. Rajendra Singh] PRESIDING MEMBER
[HON'BLE MR. Vikas Saxena] JUDICIAL MEMBER